

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on December 1, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On December 1, 2023, a complaint was received by this Agency submitted by Mr. A.A.A. (hereinafter, the complainant) against AECORP 005, S.L. (hereinafter, the respondent) for not having duly addressed his right to erasure.

In his writing, the complainant states that, after receiving several SMS messages from the respondent offering advice to reduce electricity/gas consumption, he sent an email to the respondent requesting the erasure of his data, receiving a response indicating that "(...) we have proceeded to remove your consent for commercial calls along with your phone number and the promotional code from the database of our website."

Dissatisfied with the response, the complainant reiterated his request and "(...) that the following personal data be erased: ID number, email address, bank account number, and others related to the contracting of their services," without receiving a response.

Along with his writing, the complainant provides:

- Email thread with the respondent through which the complainant exercises his right to erasure
- Screenshots of promotional SMS messages received from the respondent.
- SMS regarding the respondent's personal data protection policy.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

There is no record of any response from the respondent in this Agency.

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THIRD: The result of the transfer procedure indicated in the previous fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on March 1, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any arguments deemed appropriate within ten working days.

The respondent has stated that "(...) The client (...) was provided by an associated channel (Gestión Iberia SL) with which we no longer collaborate. This client did not pass our quality filters, so no processing was carried out with his data. Attached to this document is the termination of collaboration with Gestión Iberia SL as proof of this fact.

SECOND. - Subsequently, Mr. (...) requested the erasure of his data via an email sent to ***EMAIL.1. We responded to this request confirming that his data had been erased from our systems as requested.

THIRD. - The incident originated due to the transmission of customer data by an associated channel with which we no longer maintain collaboration. Mr. (...)’s data were not processed because they did not pass our quality filters, and they were deleted after receiving his erasure request."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, he may formulate any arguments he deems appropriate, without any arguments being submitted within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

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In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring them to respond to this Agency within one month and to demonstrate that they had provided the complainant with the appropriate response. The outcome of this forwarding did not allow for the satisfaction of the claims of the complainant. Consequently, on March 1, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to rectify any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD.

consider the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller,

Considering the available technology and the cost of its application, it will adopt reasonable measures, including technical measures, aimed at informing the controllers who are processing the personal data of the data subject's request for the deletion of any link to that personal data, or any copy or replica of it.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the controller, or for the performance of a task carried out in the public interest

or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 may make it impossible or seriously impede the achievement of the objectives of that processing, or

e) for the establishment, exercise, or defense of legal claims."

V

Conclusion

In the present case, from the examination of the documentation provided, it has been established that the complainant requested the deletion of their data from the respondent, and that the latter responded indicating that "(...) we have proceeded to remove your consent for commercial calls along with your phone number and the promotional code from the database of our website." Dissatisfied with the response, the complainant reiterated their request for the deletion of all their data, without receiving a response.

During the processing of this procedure, the respondent has informed this Agency that "(...) The incident originated due to the transmission of customer data by an associated channel with which we no longer maintain collaboration. The data of Mr. (...) was not managed because it did not pass our quality filters, and it was deleted after receiving your deletion request." However, it does not demonstrate having addressed the request made by the complainant, sending them the required response to their request.

Thus, it cannot be accepted that the response that should be given is made merely as part of an administrative procedure, such as the submission of allegations regarding the present procedure, which was initiated precisely for not properly addressing the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the controllers are obliged to issue, even in the event that there are no data in the files or even in those cases where the requirements are not met, in which case the recipient of such a request is also obliged to require the rectification of

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the deficiencies observed or, where appropriate, deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

In light of the above and given that a copy of the necessary communication that must be directed to the claimant informing them of the decision made regarding the request to exercise rights is not attached, it is appropriate to uphold the claim that initiated this procedure.

Having reviewed the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to instruct AECORP 005, S.L. with NIF B05470380, to, within ten working days following the notification of this resolution, send to the claimant a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

NOTIFY this resolution to Mr. A.A.A. and to AECORP 005, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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